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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into between _____, individually and on behalf of their son, ("Student" or _____), and the Brecksville-Broadview Heights City School District Board of Education ("District" or "Board") (collectively, "Parties"). In consideration of the mutual promises and covenants contained herein, the Parties agree as follows:

1. Student qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of Specific Learning Disability. Parents filed a Due Process Request dated August 2, 2018, received by the District on August 3, 2018, Case No. SE 3654-2018, alleging violations of the IDEA and Ohio Revised Code Chapter 3323. Specifically, Parents allege that the District: (1) failed to provide _____ with a free appropriate public education ("FAPE") for the 2016-2017 and 2017-2018 school years; and (2) failed to offer an adequate individualized education program ("IEP") for the 2018-2019 school year. Parents also allege the District discriminated against _____ based on his disability in violation of Section 504 of the Rehabilitation Act of 1973 ("Section 504"), the Americans with Disabilities Act ("ADA"), and/or corresponding state laws. Finally, Parents claim the District violated the Family Educational Rights and Privacy Act ("FERPA") by not providing a complete set of education records to Parents. The District denies all the allegations in the Complaint and asserts that it has offered and continues to offer an IEP that is reasonably calculated to enable Student to make progress appropriate in light of his circumstances.
2. The Parties reach this compromise agreement to avoid the expense, inconvenience, and potential acrimony associated with a due process hearing under the IDEA. The District is not admitting that any IEPs or placements that it offered were inappropriate and/or improperly implemented; Parents are not admitting that the same were appropriate and/or properly implemented.
3. In consideration of and for the promises and mutual covenants set forth herein, the Parties agree as follows:
 - a. The District will pay to and/or on behalf of Parents an amount not to exceed twenty-nine thousand four hundred twenty-two dollars (\$29,422) for the 2018-2019 school year, and twenty thousand five hundred dollars (\$20,500) for the 2019-2020 school year, for costs associated with _____ tuition and educational expenses at Lawrence School ("Lawrence"), in full

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satisfaction of its obligation to provide a FAPE to _____. The District's reimbursement payment to Parents for the portion of tuition they have paid for the 2018-2019 school year will be made to Parents within twenty-one (21) calendars days of Parents' submission to the District of proof of payment. Parents agree to provide the District with their tax identification number for the District to set them up as a vendor, so the preceding payment can be issued to them. The District's payment(s) for the remainder of the 2018-2019 school year, and the 2019-2020 school year, will be made directly to Lawrence based upon receipt of monthly or quarterly invoice(s) from Lawrence, whichever is Lawrence's standard practice, that are submitted to the District's Director of Pupil Services. The District will issue payment within thirty (30) days of receipt of proper invoices / documentation. The Parties agree to work cooperatively to facilitate payment arrangements.

Parents agree that _____ will remain enrolled in the District during the pendency of this Agreement. Parents further agree to sign a new IEP that will be developed by the District in October 2018. Prior to signing the IEP, Parents, through their legal counsel, will have an opportunity to provide input into the IEP. The October 2018 IEP will contain the Section 7 – Specially Designed Instruction content from the September 4, 2018 proposed amended IEP, along with the following: "_____ will receive 1:1 language-based, multisensory, structured, sequential, cumulative reading instruction" in a resource room for forty (40) minutes per session, four (4) days per regular school week. Additionally, Section 11 – Least Restrictive Environment will specify: "_____ will attend the school he would attend if not disabled and not receive all special education services with non-disabled peers due to the need for specialized and direct instruction. Special education services will be provided through small group instruction in English Language Arts. Math instruction will be provided in a small group resource room setting. Multisensory reading instruction will be provided in a resource room in a 1:1 setting. Instruction in all other subjects will be provided in a regular education setting. _____ will attend Academic Assistance Lab for 45 minutes daily to address organization and assignment completion." Parents agree to mark and sign the box in Section 14 that states: "I give consent for the change of placement identified in this IEP." District agrees, however, not to use Parents' signature giving consent for change of placement as evidence that they agree that the October 2018 IEP provides Student with a FAPE; instead, the District will only use the

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signature to establish Student's stay put placement if Parents ever attempt to challenge the October 2018 IEP or another IEP that might be developed in accordance with this Agreement.

Parents agree that for any school year in which they and/or Student accept the payments set forth above, Parents and/or Student waive their right to apply for the Jon Peterson Special Needs Scholarship. Parents also agree that for any period covered by this Agreement in which they seek contributions from the District above and/or beyond that which is expressly set forth above, the District's payment obligations under this Agreement shall immediately terminate.

Parents shall bear full responsibility for all other costs associated with Student's education during the 2018-2019 and 2019-2020 school years, including, but not limited to, additional tuition and/or fees charged by Lawrence, private therapies, transportation to and from Lawrence, and/or home-based services.

- b. Parents shall be responsible for transporting _____ to and from Lawrence for the 2018-2019 and 2019-2020 school years. Parents shall not seek _____ and hereby waive their ability to request reimbursement from the District for the costs associated with transporting _____ to and from Lawrence.
- c. Parents affirm that they selected Lawrence, and Lawrence was not determined by the District to be Student's least restrictive environment ("LRE"). As such, Parents agree that the District shall not be responsible for the efficacy of the educational program provided to _____ by or at Lawrence, and that they shall have no right to seek compensatory education or other relief from the District because of any real or perceived failures by Lawrence. See Paragraphs 4 and 11, below (_____ may return to school in the District anytime and forego payment of any remaining funds otherwise authorized by this Agreement).
- d. The District's obligation to provide payments pursuant to Paragraph 3.a. shall automatically terminate if Student stops attending Lawrence (i.e., Student withdraws from, is removed from, or otherwise ceases to be enrolled in Lawrence), or if Parents or Student no longer reside in the District. In such case, the obligation to provide payments shall terminate on the date

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Student is no longer attending Lawrence, or on the date Parents or Student no longer reside in the School District. Such termination shall have no effect upon the District's obligation to pay its share of Student's tuition at Lawrence that is incurred prior to the date Student is no longer attending Lawrence, or Parents or Student no longer reside in the School District. If Student stops attending Lawrence for any reason, Parents must notify the District within five (5) school days, and the District will proceed to implement the IEP developed in October 2018, until a new IEP can be developed, which will occur within twenty (20) school days of returning to school in the District. See Paragraph 11.

- e. Parents agree to provide releases allowing the District to receive all education records (including, but not limited to, all progress reports, report cards, programming data, assessments, consultant's reports, and/or evaluations) prepared by Lawrence during the 2018-2019 and 2019-2020 school year. Parents also consent to quarterly observations of Student at Lawrence by District employees or representatives during the 2019-2020 school year. Parents shall receive at least seventy-two (72) hours advanced notice of the observations. If the District requires assistance from Parents to obtain educational information about Student from Lawrence, the District will advise Parents of the need and provide Parents with specific guidance as to the nature of the assistance needed, and Parents will act in good faith to provide such assistance.
- f. Parents understand and agree that Student's placement at Lawrence is unilateral on their part and is not deemed "initial stay-put," "stay put" or Student's "initial/pendency placement" should Parents disagree with any IEPs developed by the District pursuant to this Agreement, including the IEP developed by the District pursuant to Paragraph 11 or 12, and challenge any of the specified IEPs or file any administrative or judicial proceeding regarding such IEPs. Under such circumstances, Student's "stay put" or "pendency placement" shall be the placement identified in the IEP developed in October 2018. The "stay put" or "pendency placement" during any subsequent dispute may be changed as authorized by the IDEA and its implementing regulations (i.e., through a decision of the State Level Review Officer or through an agreement between the District and Parents). The Parties expressly agree that the placement identified in the IEP developed in

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October 2018, which Parents shall sign authorizing consent for the change in placement identified in the IEP, shall be _____ s stay put placement.

- g. Parents agree to assume full responsibility for federal, state and local taxes and other payments, if any, owed on the amounts paid by the District to Parents and/or on behalf of Parents to Lawrence pursuant to this Agreement. The District will not report to the Internal Revenue Service ("IRS") the amounts paid to Parents pursuant to this Agreement nor issue to Parents a Form 1099-MISC, and no withholdings will be made from the amounts paid by the District to Parents or Lawrence pursuant to this Agreement. The District will issue a Form 1099-MISC to Lawrence for the amount it pays directly to Lawrence School. If it is later determined by the IRS or another governmental authority that the District should have withheld taxes from the amounts paid by it to Parents or Lawrence pursuant to this Agreement, Parents agree to indemnify and hold the District harmless for the amount of such taxes, and to reimburse the District for any penalties and/or interest assessed against the District as a result of it failing to withhold the taxes on said payments.
 - h. The payment for educational services in Paragraph 3.a. shall not be construed as an admission by the District that such services are necessary or appropriate for the provision of a FAPE to Student and shall not be construed as a private placement by the District.
 - i. The District will arrange for a payment of five thousand dollars (\$5,000) directly to Hickman & Lowder Co., L.P.A. for services rendered to Parents by their attorneys in connection with Case No. 3654-2018. Said payment will be made within fifteen (15) business days after the District's legal counsel receives an itemized statement and bill/invoice, including dates of services rendered, description of services, time expended, and hourly rate, reflecting fees charged to Parents by their attorneys in connection with Case No. SE 3654-2018. A form 1099-MISC will be issued to Hickman & Lowder Co., L.P.A., which agrees to furnish its identification number to the District's legal counsel.
4. The Parties agree that for any school year or period referenced in this Agreement, Parents and/or Student have the right to decline the settlement amounts specified in Paragraph 3.a., and to have Student educated by the District and to be

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served under the IDEA. If Parents and/or Student accept the payments referenced in Paragraph 3.a., any claims they may have otherwise had against the District for the 2018-2019 and 2019-2020 school years, including any right to access a FAPE from the District, are waived for the period covered by the payments in accordance with the terms of the Agreement.

5. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on _____'s current and future educational programming and educational placement, except as expressly stated herein. As such, Parents agree that they are prohibited from introducing this Agreement, or the payments made by the District in accordance with this Agreement, in any future due process proceeding to establish _____'s need for placement outside of the District.
6. This Agreement and all payment obligations existing hereunder are contingent upon Parents and Student residing in the District, and upon the District being provided records and access to Student in accordance with Paragraph 3.e., above. If Parents and/or Student no longer reside in the District, or if releases for education records and/or access to Student are not provided by Parents, the District's payment obligations shall terminate after a fourteen (14) calendar day period in which Parents can cure said failure(s). Nothing contained in this Agreement shall be construed to preclude Student and/or Parents from forfeiting payment(s) provided hereunder and returning to the District for an education.
7. If _____ and/or his legal guardian or representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all or any portion(s) of this Agreement, other than an action for breach of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. To the extent permitted by law, any challenge to this Agreement must be brought in Federal District Court.
8. Parents expressly acknowledge that this Agreement is effective through the end of the 2019-2020 school year, and that circumstances may change. Parents further acknowledge and agree that they assume the risk of any changes in circumstance and that this Agreement shall not be invalidated by any such change(s).
9. Parents specifically waive any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically release and discharge the District and Peters, Kalail & Markakis Co., L.P.A., including all of their predecessors, successors, assigns, officers, employees and

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agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which the Parents may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).

10. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of _____, agree that all the issues that could have been raised in a request for an impartial due process hearing and/or an administrative or judicial proceeding are resolved by this Agreement. Additionally, Parents, individually and on behalf of _____, forever release and discharge the Board, including the individual Board members, employees, and agents in their official capacities, (collectively referred to as "The Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation under Section 504), which Parents and/or Student may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of the signing of this Agreement, and through May 31, 2020, with respect to _____ and his education in or through the District (i.e., the District's provision of a free appropriate public education to _____, and Parents' participation in _____ educational programming. This comprehensive waiver of claims includes, but is not limited to, claims relating to education, special education, related services, transportation, tuition, room and board, reimbursement, compensatory education, damages (including related to claims of discrimination), therapy, independent evaluations, and attorneys' fees. If _____ returns to the District prior to May 31, 2020, this section of the Agreement will apply through the date _____ returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. § 1983), 20 U.S.C. §§ 1400 et seq. (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parents retain their rights under applicable laws and regulations to enforce this Agreement.
11. Nothing herein shall prevent _____ from returning to and attending the District's schools for implementation of a new IEP, which will be developed within twenty (20) school days of _____ returning to school in the District. In the interim, while

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the new IEP is being developed, the District will implement the IEP developed in October 2018. Parents waive their right to challenge the appropriateness of the IEP developed in October 2018, during the twenty (20) school days while a new IEP is being developed. Parents retain their right to challenge the appropriateness of the new IEP, after it is developed and offered by the District.

12. By May 15, 2020, the District will convene an IEP team meeting to develop and offer an IEP for _____ for the 2020-2021 school year. If Parents disagree with the IEP and/or educational placement proposed by the District for the 2020-2021 school year, and file a due process complaint regarding such IEP or educational placement, the Parties agree (as stated in Paragraph 3.f., above) that Lawrence shall not be Student's "then-current educational placement (i.e., initial "stay put" or "pendency placement."). Under such circumstances, _____ "stay put" or "pendency placement" shall be the placement identified in the IEP developed in October 2018.
13. Student's next triennial multifactored evaluation/evaluation team report ("ETR") is due by February 6, 2020. The Parties agree to meet by December 1, 2019, to plan a new 2020 ETR. The 2020 ETR will be completed in a timely manner and the team will convene to discuss the ETR results. The Parties will work in a collaborative manner to schedule and conduct the assessments associated with the 2020 ETR. Parents expressly waive their right to have the team meet to discuss the IEP after the 2020 ETR is completed, and instead agree to convene the IEP in May 2020, at which time the team will consider the 2020 ETR as it develops a new IEP for the 2020-2021 school year (see Paragraph 12 above).
14. Provided _____ remains enrolled at Lawrence, Parents waive their right to have the District develop a new, updated IEP in October 2019. Instead, the District will issue a new IEP that is substantively identical to the October 2018 IEP, but with a new Meeting Date to ensure the District complies with its legal obligation to have a current IEP in place for Student.
15. Parents expressly waive their right to initiate a complaint with the Ohio Department of Education ("ODE") relating to any aspect of _____ education arising on or before the date of execution of this Agreement. Parents further agree that ODE does not have jurisdiction to investigate or rule upon any complaints brought by Parents relating to any aspects of Student's education arising on or before the date of execution of this Agreement. Additionally, Parents waive their right to file a complaint with the U.S. Department of Education's Office for Civil Rights ("OCR") concerning any aspect of Student's education arising on or before the date of

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execution of this Agreement. Parents confirm that any issue/claim that could have been brought before ODE or OCR has been resolved.

16. Parents (individually and on behalf of _____) agree to keep the existence of this Agreement and the terms and content of this Agreement confidential, and will not release it or discuss it, in writing or orally, with third parties. Specifically, Parents agree not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Lawrence personnel necessary to facilitate implementation of this Agreement; (b) Parents' attorneys, accountants, financial advisors, and tax advisors; and (c) courts and mediators as necessary. Parents shall direct the individuals and organizations referenced in (a) and (b) to keep this document and its terms confidential, and that this document constitutes a student education record that is protected under state and federal laws. The Parties agree that the terms of Paragraph 3.a. (for the limited and express purpose of securing invoices/billing records from Lawrence concerning _____; educational programming/services), and Paragraph 3.e. (for the purpose of securing cooperation and collaboration from Lawrence in providing education records and observations) may be shared with Lawrence. If asked about their dispute with the Brecksville-Broadview Heights City School District, Parents shall respond only that it has been satisfactorily resolved. If Parents violate this Paragraph, a court of competent jurisdiction shall have authority to award appropriate relief, including that Parents shall refund all monies paid pursuant to this Agreement. The District acknowledges its responsibility to keep this Agreement confidential pursuant to federal and state law as an educational record.
17. The provisions of this Agreement can only be modified through mutual agreement as evidenced by a document signed by both parties that serves as a supplement to this Agreement.
18. The Parties acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with an attorney representing them to consider its terms before signing this Agreement. The Parties further declare and acknowledge that no promises or agreements not expressly included in this Agreement have been made and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
19. This Agreement does not constitute, nor shall it be construed as, an admission of liability or wrong doing by the Board, its agents, employees or successors, with respect to any claims Parents could have potentially raised with respect to

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entitlement to a FAPE. The Board expressly denies that it has done anything wrong or unlawful.

20. This Agreement is comprehensive with respect to the sums to be paid to and/or on behalf of Parents, and Parents and their attorney agree that they shall make no application to a court for, or in any other manner seek, fees and/or costs in connection with the Parties' dispute concerning _____'s proposed alternative educational placement through the 2019-2020 school year. The Parties shall bear their own costs in connection with this matter.

Date: _____

By: _____

For himself and on behalf of _____

Date: _____

By: _____

For herself and on behalf of _____

Date: _____

By: _____

Joelle Magyar, Superintendent
On behalf of the Brecksville-Broadview Heights City
School District Board of Education

Date: _____

By: _____

Gina Symsek, Director of Pupil Services
On behalf of the Brecksville-Broadview Heights City
School District Board of Education